

Leave to Amend

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) The Court will grant Plaintiff leave to amend.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendant's demurrer to Plaintiff's First Amended Complaint based on nonjoinder and **SUSTAINS** Defendant's demurrer to Plaintiff's second cause of action for intentional infliction of emotional distress, fourth cause of action for retaliation in violation of Labor Code section 1102.5, and fifth cause of action for retaliation in violation of Education Code sections 44110-44114 et seq. Plaintiff may file and serve a second amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

5. 9:00 AM CASE NUMBER: C25-00707
CASE NAME: JOHN MIXON VS. BYRON UNION SCHOOL DISTRICT
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**
FILED BY: BYRON UNION SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Byron Union School District ("Defendant") brings this motion to strike ("Motion") to the First Amended Complaint ("FAC") of plaintiff John Mixon ("John Sr."), individually and as Guardian Ad Litem for John Mixon ("John Jr."), Ja'leyah Mixon ("Ja'leyah"), and Ja'niyah Mixon ("Ja'niyah" together with John Jr., John Sr., and Ja'leyah, "Plaintiff").

For the reasons discussed below, the Court **GRANTS** Defendant's motion to strike as to the four prayers for relief seeking punitive damages and **DENIES** Defendant's motion to strike in all other regards. Plaintiff is granted leave to amend.

Meet and Confer

The meet and confer requirement has been satisfied. (John Laughlin Decl., ¶¶ 2-7; Code Civ. Proc., § 435.5, (a)(3)(A).)

Legal Standard

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc., § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Requests for Judicial Notice

Defendant asks the Court to take judicial notice of Plaintiff's First Amended Complaint and exhibits 1, 2, 3, 4, 5, 6, and 7 to the First Amended Complaint. The Court **grants** Defendant's requests for judicial notice. (Evid. Code, § 452, (d).)

Background: Facts Alleged in FAC

Plaintiff filed this action on March 12, 2025. The currently operative First Amended Complaint ("FAC") was filed on January 21, 2026. The FAC alleges claims against Defendant for: (1) negligence; (2) intentional infliction of emotional distress ["IIED"]; (3) negligent supervision; (4) retaliation in violation of Labor Code section 1102.5; and (5) retaliation in violation of Education Code sections 44110-44114 et seq.

Plaintiff alleges that Defendant repeatedly failed to enforce restraining orders against Julie Burns ("Ms. Burns"), the mother of John Jr., Ja'leyah, and Ja'niyah (together, the "Children"). (FAC, ¶ 7.) Despite being provided with copies of the restraining orders, Defendant permitted "repeated and unfettered access to the children at school premises." (*Id.* at ¶ 8.) Despite this conduct occurring as far back as 2023, the focus of the FAC is on actions by Ms. Burns that took place subsequent to February 16, 2024. (*Id.* at ¶ 9.) This conduct essentially includes 4 instances of Ms. Burns visiting the school of the Children and either attempting to visit them or leaving candy, balloons, gifts or notes for them. (*Id.* at ¶ 14.)

On February 29, 2024, Defendant terminated Plaintiff John Sr. from employment as a basketball coach for Excelsior Middle School. (FAC, ¶16.) At that time, he had reported at least five incidents in which Defendant allowed Ms. Burns to contact the Children, allegedly in violation of a restraining order. (*Ibid.*) Further, on February 4, 2025, Defendant disclosed a behavioral issue with John Jr. to Ms. Burns and she reported Plaintiff to Child Protective Services, who visited him the next day. (*Id.* at ¶ 22.) After interviewing the Children, Child Protective Services closed the case against Plaintiff. (*Ibid.*)

Plaintiff seeks compensatory damages, general damages, injunctive relief, declaratory relief, costs, and punitive damages. (FAC, pp. 11-13.)

Discussion

Moving Papers

Defendant asks the Court to strike the following from the FAC:

FAC Paragraph 14, Subparagraphs "a" through "d";

FAC Paragraphs 21–26;

Any and all references to "reckless," "conscious disregard," and "gross negligence," including Paragraphs 28 and 32 and the subheading to the First Cause of Action;

Three Prayers for Injunctive Relief; and

Four Prayers for Punitive Damages.

(Notice of Motion to Strike, p. 2.)

Defendant argues that the prayers for injunctive relief are improper because: (1) it would impact a third party, Ms. Burns; (2) any injunctive relief provided to Plaintiffs under court order might conflict with obligations this District might owe to Ms. Burns under various statutory authorities and

regulations governing the rights of Burns and other parents vis-à-vis the school their children attend; (3) it is an open question whether Defendant would even be bound to such a request as Plaintiffs' prayer for relief under the plain language of the restraining orders themselves; (4) the relief sought would dictate school security policy, a matter uniquely suited to the expertise of the District; (5) it is not at all clear from the FAC that the almost five-year-old Court Ordered Parenting Plan (which is what was incorporated into the "Restraining Order") is still in effect in its original, unmodified state; and (6) this Court cannot take on jurisdiction in a custodial dispute. (MPA ISO Motion to Strike, pp. 3-4.)

Defendant argues that Government Code sections 818 and 825 exempt California public entities from punitive damages. (MPA ISO Motion to Strike, pp. 3-4.)

Defendant argues that paragraph 14, subparagraphs (a), (b), (c), and (d), of the FAC are untimely and barred. (MPA ISO Motion to Strike, p. 5.) Only conduct from February 16, 2024 is at issue and the allegations from those subparagraphs occurred prior to February 16, 2024, thus they are foreclosed as a matter of law and must be stricken from the FAC because all of them occurred before the six-month lookback period of the August 16, 2024, Government Claims Notice. (*Ibid.*)

Defendant argues that paragraphs 21 to 26, labeled "Ongoing Issues," are not directly tied to any of the five claims and are irrelevant to any cause of action. (MPA ISO Motion to Strike, pp. 5-6.) The actions described here all occurred subsequent to Plaintiff's filing of his government claim, which occurred on August 16, 2024, and so these allegations are barred as a matter of law and must be stricken. (*Id.* at p. 6.) Defendant further asks the Court to strike various references to gross negligence, reckless, and conscious disregard, that appear in the FAC. (*Ibid.*)

Opposition

Plaintiff argues that the prayer for injunctive relief is legally available and does not ask the Court to adjudicate parental rights because the requested injunction would regulate Defendant's conduct and not alter custody, visitation, or Ms. Burns' parental rights. (Opposition, pp. 3-6.)

Plaintiff asserts that the pre-February 16, 2024 incidents are relevant context that establish notice, knowledge, foreseeability and state of mind. (Opposition, pp. 6-8.) Plaintiff further contends that paragraphs 21 to 26, which involve allegations of conduct occurring subsequent to the submission of the government claim, are relevant allegations of continuing retaliatory conduct and that Defendant cannot establish that every word of those paragraphs is irrelevant, false, or improper, as a matter of law. (*Id.* at pp. 8-9.) Regarding punitive damages, Plaintiff acknowledges that they are barred against Defendant but remain available against the Doe defendants. (*Id.* at pp. 9-10.) Finally, Plaintiff argues that the FAC adequately supports the allegations of reckless, conscious disregard, and gross negligence. (*Id.* at pp. 10-12.)

Reply

On reply, Defendant asserts that the injunctive relief prayers still require the Court to regulate a non-party's rights. (Reply, pp. 2-3.) Defendants also argues that subparagraphs (a) to (d) of paragraph 14 and paragraphs 21 – 26 remain time barred regardless of "context" or "ongoing issues" label. (*Id.* at pp. 3-4.) Plaintiff admits the punitive damages are not proper against Defendant and the Doe defendant argument does not save them. (*Id.* at p. 4.) Finally, the conscious disregard, gross negligence, and reckless allegations remain conclusory labels. (*Ibid.*)

Analysis

"A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.

Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322(a).)

Here, Defendant has not complied with rule 3.1322(a) of the California Rules of Court because Defendant did not number the specifications consecutively—or at all for that matter—and failed to either quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.

FAC Paragraph 14, Subparagraphs “a” through “d” and Paragraphs 21–26

With respect to the allegations related to conduct that occurred before and after the relevant government claim period, the Court exercises its discretion to deny the motion to strike those allegations. While there may be little need for such text, the Court does not necessarily view the text as improper, false, or irrelevant. Accordingly, the motion to strike is denied as to subparagraphs (a) through (d) of paragraph 14 and paragraphs 21 through 26 of the FAC.

Any and all references to “reckless,” “conscious disregard,” and “gross negligence,” including Paragraphs 28 and 32 and the subheading to the First Cause of Action

The Court denies the motion to strike as to its request to strike “any and all references to” reckless, conscious disregard, and gross negligence. A notice of motion to strike a portion of a pleading “must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.” (Cal Rules of Court, Rule 3.1322.) Here, Defendant’s request is not focused enough for the Court to ignore the procedural shortcomings and the Court thus denies the motion to strike as to these references.

With respect to paragraph 28 and 32, despite using the words reckless and conscious disregard, the rest of each paragraph contains allegations that are quite ordinary and run of the mill. Paragraph 28 of the FAC alleges that “Defendants negligently, carelessly, recklessly, and/or unlawfully allowed Ms. Burns to contact minor Plaintiffs while on school grounds in violation of a court-ordered restraining order.” Paragraph 32 of the FAC alleges that “Defendants’ repeated and knowing failure to enforce court-issued restraining orders despite multiple warnings, demonstrates a reckless and conscious disregard for Plaintiffs’ well being, and constitutes gross negligence.” Due to the overreach of the motion to strike as to these entire paragraphs, the motion to strike is denied as to paragraphs 28 and 32 of the FAC. The request for the Court to strike the entire subheading of the first cause of action is denied for the same reason.

Three Prayers for Injunctive Relief

The request to strike the three prayers for injunctive relief is also denied. The Court disagrees with Defendant that a possible injunction down the road that has not yet been crafted would modify any valid existing restraining order or affect the rights of a third person not a party in this matter or infringe on Defendant’s expertise. At this stage of this case, it is still an open question as to what extent, if any, Defendant is bound by the restraining order, which explicitly directs and governs the conduct of Ms. Burns, not Defendant. (FAC, Exhs. 1-3.)

Four Prayers for Punitive Damages

The Court strikes the four prayers for relief that ask for punitive damages. Plaintiff admits that there are no punitive damages allowed against Defendant yet wishes to keep them in for the Doe defendants. However, the punitive damage allegations do not make clear that they are only pertaining to the Doe defendants and are thus improper and stricken.

Ruling

Based on the analysis above, the Court **GRANTS** Defendant's motion to strike as to the four prayers for relief seeking punitive damages and **DENIES** Defendant's motion to strike in all other regards. Plaintiff is granted leave to amend.

6. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES CLAIMS IN SECOND AMENDED COMPLAINT
FILED BY: NEW PIPES INC
TENTATIVE RULING:

Before the Court is Defendant New Pipes, Inc.'s Motion to Strike Punitive Damages Claims in Second Amended Complaint

Defendant filed and served its Demurrer and declaration in support on April 9, 2026. Thereafter, on April 14, it filed a three-part Request for Judicial Notice in support thereof. The unopposed RJN is **GRANTED**. Counsel is reminded that all papers supporting its motion should be filed and served together. (See e.g. Code of Civil Procedure § 1005(b).)

Initial Consideration

Plaintiff filed a declaration which attached four documents labeled as Exhibits A-D. "[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) The declaration did not include any bookmarks, much less ones with the required information. Plaintiff is reminded to comply with all Rules of Court going forward.

Factual Allegations

See Line 7.

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435 (b)(1); Cal. R. Ct., Rule 3.1322(b).)

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 ["matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) An "irrelevant" matter includes allegations not essential to the claim or defense, as well as allegations "neither pertinent to nor supported by an otherwise sufficient claim or defense." (Code Civ. Proc. § 431.10 (b).)

Analysis

Defendant seeks to strike the allegations of the SAC that relate to Plaintiff's claim for punitive